

25STCV23413 25STCV23413

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-21

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Case Number: 25STCV23413 Hearing Date: August 21, 2026 Dept: 512

HEARING DATE: Fri., August 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Clark v. Notting Hill Music (UK), et

al. COMPL.

FILED: 08-06-25

CASE NUMBER: 25STCV23413 FAC FILED: 03-18-26

NOTICE: OK

PROCEEDINGS: MOTION

TO QUASH SERVICE OF SUMMONS

MOVING PARTY: Specially

Appearing Defendant Notting Hill Music Masters, LLC

RESP. PARTY: Plaintiff Dominique Lashawn Clark

MOTION TO QUASH SERVICE

(CCP § 418.10))

TENTATIVE RULING:

Specially Appearing

Defendant Notting Hill Music Masters, LLC's Motion to Quash Service of Summons

for Lack of Personal Jurisdiction is GRANTED as to the request to quash the

5/20/26 Proof of Service filed in this matter.

The Proof of Service filed
on May 20, 2026, is hereby STRICKEN.

The Court schedules an
Order to Show Cause re: Proof of Service for October 15, 2026 at 8:30 a.m. in
Department 512. The Court continues the
Case Management Conference to October 15, 2026 at 8:30 a.m. in Department 512
of Stanley Mosk Courthouse.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on August 10, 2026 ☐
Late ☐ None

REPLY: Filed
on August 12, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On August 6, 2025, Plaintiff Dominique
Lashawn Clark ("Plaintiff"), proceeding pro se, filed the instant action
against Defendants Notting Hill Music (UK), Kobalt Music Group Ltd., and Andy
McQueen.

On February 27, 2026, the Court granted Specially Appearing Defendants Andy Green, Kobalt Music Group, LTD, and Notting Hill Music (U.K.)'s motions to quash service of summons. (2/27/6 Order.)

On March 4, 2026, the Court granted Plaintiff's amendment to the Complaint to correct the name "Notting Hill Music (UK)" as "Notting Hill Music Masters, LLC."

On March 18, 2026, Plaintiff filed a First Amended Complaint ("FAC") against Defendant Notting Hill Music Masters, LLC ("Defendant"), alleging causes of action for Breach of Contract and Unjust Enrichment.

On May 20, 2026, Plaintiff filed Proof of Service demonstrating the "Summons and First Amended Complaint" were served on "[Defendant]/Register Agent-EResident Agent, Inc." by personal service on "Marcela Ortega / paralegal" on May 15, 2026, at "9000 W Sunset Blvd Ste 1260, West Hollywood, CA 90069." (5/20/26 Proof of Service.)

On June 10, 2026, Defendant filed the instant Motion to Quash Service of Summons for Lack of Personal Jurisdiction (the "Motion") and request for judicial notice.

On August 7, 2026, Plaintiff filed an Opposition.

On August 10, 2026, Plaintiff filed an Amended Opposition.

On August 12, 2026, Defendant filed a Reply and Evidentiary Objections.

On August 14, 2026, Plaintiff filed a Response to the Reply.

II.
Procedural
Issues

As an initial matter, the Court notes the Reply states the operative Opposition does not contain a proof of service, and Defendant was never served with the Opposition or Amended Opposition; however, the Court's docket reflects Plaintiff filed a proof of service regarding the Opposition on August 11, 2026. While the Court acknowledges the Amended Opposition was untimely served despite being timely filed, the Court exercises its discretion to address the Amended Opposition on the merits given the timely Reply and the interests of justice.

Additionally, the Court notes that Plaintiff improperly filed a Response to the Reply. However, the Court addresses the Response to the Reply in the interests of justice.

III.

Request
for Judicial Notice

In conjunction with the Motion, Defendant requests the Court take judicial notice of eight documents filed in this matter (RJN, pp. 14-15, Exhs. 1-8) and "California Secretary of State record for Notting Hill Music Masters, LLC identifying ERESIDENTAGENT, INC. as its registered agent for service of process" (RJN, p. 15, Exh. 9).

The Court GRANTS Defendant's request as to Exhibits 1-8 pursuant to Evidence Code section 452, subdivision (d). The Court also GRANTS Defendant's request as to Exhibit 9 pursuant to Evidence Code section 452, subdivision (h).

IV.

Evidentiary
Objections

In conjunction with the Reply, Defendant makes various objections to Clark's declaration filed in support of the Opposition, portions of the Opposition, and various exhibits attached to the Opposition.

The Court notes the objections are ambiguous as to whether they pertain to the Opposition or Amended Opposition. Thus, the Court OVERRULES the objections.

V.

Legal

Standard

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).)

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’ ” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413; see also Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1160.) However, a proof of service containing a declaration from a registered process server invokes a rebuttable presumption affecting the burden of producing evidence of the facts stated in the return. (Cal. Evid. Code, § 647; see *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

VI.

Discussion

Defendant moves to quash service and contest personal jurisdiction on the following grounds: (1) Plaintiff did not properly substitute Defendant in to the action; (2) the Proof of Service stating the FAC was served on Defendant fails to state the operative Summons was also served on Defendant; and (3) the Proof of Service facially conflates two entities – Defendant and Defendant’s registered agent for service of process. (Motion, pp. 2-3, 10-12.) Finally, Defendant states that actual notice does not cure defective process or party substitution. (Motion, p. 12.)

In the Amended Opposition, Plaintiff contends that Plaintiff properly followed Court orders, filed a FAC to name the proper defendant, and properly served Defendant with the FAC and new summons. (Amended Opp., pp. 1-4.) Further, Plaintiff states Defendant mischaracterizes the procedural history of this case, and Defendant received notice of this action and actively participated in proceedings. (Amended Opp., pp. 4-5.)

In Reply, Defendant contends the Opposition fails to address the Motion's contention that Plaintiff incorrectly renamed Defendant in this action. (Reply, p. 2.) Further, Defendant states the Opposition does not cure the defects in the subject proof of service. (Reply, p. 5.) Finally, Defendant reiterates arguments raised in the Motion and notes that a majority of Plaintiff's exhibits filed in support of the Opposition are irrelevant to the instant Motion. (Reply, p. 6.)

In a Response to the Reply, Plaintiff disputes the Reply's contentions and elaborates on the points raised in the Opposition. Further, Plaintiff urges the Court to rely upon the actual record rather than Defendant's characterizations of the record in ruling on the Motion. Plaintiff also submits 12 exhibits in conjunction with the Response to the Reply. (Response, Exhs. 1-12.)

As an initial matter, the Court notes the operative complaint in this matter is the FAC. As such, the Court, in addressing the Motion, evaluates whether service of the FAC and Amended Summons were properly effected on Defendant. The original Complaint and any modifications to or service attempts of that complaint prior to the FAC are irrelevant to the Court's instant determination.

Plaintiff filed the 5/20/26 Proof of Service demonstrating the "Summons and First Amended Complaint" were served on "[Defendant]/Register Agent-EResident Agent, Inc." by personal service on "Marcela Ortega / paralegal" on May 15, 2026, at "9000 W Sunset Blvd Ste 1260, West Hollywood, CA 90069." (5/20/26 Proof of Service.) The 5/20/26 Proof of Service states that a California sheriff or marshal effected the service on Defendant. (5/20/26 Proof of Service.)

As a registered process server did not file the 5/20/26 Proof of Service, the burden is on Plaintiff to prove the existence of jurisdiction by proving the facts requisite to an effective service. (Summers, supra, 140 Cal.App.4th at p. 413.)

Here, Plaintiff provides various pieces of evidence irrelevant to the issue of proper service of the FAC. However, Plaintiff provides various documents from the Court record as well as a declaration from Plaintiff attesting that Plaintiff caused the FAC and

Amended Summons – referred to by Plaintiff as the “newly issued Summons” following the FAC – to be properly served on Defendant’s agent for service of process. (Opp., Clark Decl., ¶¶ 5-8.)

The Court is not satisfied that Plaintiff’s evidence satisfactorily and adequately demonstrates that the 5/20/26 Proof of Service on file with this Court, specifically, reflects proper service of both the FAC and Amended Summons on Defendant. The face of the 5/20/26 Proof of Service states that the “Summons and First Amended Complaint” were served on Defendant, but does not state that the Amended Summons, which is the operative summons, was served on Defendant in addition to the FAC. (See 5/20/26 Proof of Service.) Plaintiff’s declaration is ambiguous as to which proof of service is being referred to in the opposing papers and supporting evidence, and there is no other admissible or legally adequate evidence, such as a declaration from the sheriff or marshal who effected the service described in the 5/20/26 proof of service, submitted by Plaintiff to confirm that the FAC and Amended Summons were indeed part of the documents served on Defendant as described in the 5/20/26 Proof of Service. The Amended Summons and FAC must both be properly served on Defendant to confer this Court with jurisdiction over Defendant in the instant action.

Furthermore, Plaintiff fails to provide any legally admissible evidence to demonstrate the service address and registered agent for service of process listed in the 5/20/26 Proof of Service were proper as to entity Defendant.

Based on the foregoing, the Court finds Plaintiff has not met Plaintiff’s burden of demonstrating effective service through the service described in the 5/20/26 Proof of Service. (Summers, supra, 140 Cal.App.4th at p. 413.)

Thus, the Motion is GRANTED as to the request to quash the 5/20/26 Proof of Service filed in this matter.

To the extent Defendant also requests the Court find that Defendant is improperly named in this action as Defendant was not named or properly named in the original Complaint, the Court does not find there to be legally adequate grounds to grant this request as it pertains

to the operative FAC. (See e.g., Nat'l Secretarial Serv. v. Froehlich (1989) 210 Cal.App.3d 510, 519 ["Under Code of Civil Procedure section 472, a plaintiff may amend the complaint as a matter 'of course' without leave of court if such amended pleading is filed before the answer or a hearing is held on a demurrer. Such amendments may add new parties to the action"], emphasis added.)

VII.

Conclusion
& Order

Based on the foregoing, Specially
Appearing Defendant Notting Hill Music Masters, LLC's Motion to Quash Service of Summons for Lack of Personal Jurisdiction is GRANTED as to the request to quash the 5/20/26 Proof of Service filed in this matter.

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on May 20, 2026, is hereby STRICKEN.

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